

HOUSE No. 1715

The Commonwealth of Massachusetts

PRESENTED BY:

Colleen M. Garry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to locating missing persons via mobile data (Kelsey's Bill).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1715

By Representative Garry of Dracut, a petition (accompanied by bill, House, No. 1715) of Colleen M. Garry relative to requiring mobile phone providers to disclose to law enforcement officials the location of missing persons. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1519 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to locating missing persons via mobile data (Kelsey's Bill).

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6A of the General Laws is hereby amended by inserting at the end thereof the
2 following new section:—

3 Section 18M.

4 (a) As used in this section the term “Executive office” shall mean the executive office of
5 public safety and security.

6 (b) Upon request of a law enforcement agency, a wireless telecommunications carrier or
7 in-vehicle security and communications service provider, shall immediately provide location
8 information concerning the telecommunications devices of the user to the requesting law
9 enforcement agency (i) in order to respond to a call for emergency services initiated from the

telecommunications devices of the user, (ii) to assist in a missing person investigation, or (iii) in an emergency situation that involves the risk of death or serious physical harm. Nothing in this section shall prohibit a wireless telecommunications carrier from establishing protocols by which the carrier could voluntarily disclose location information.

(c) (1) All wireless carriers and in-vehicle security and communications service providers shall submit their emergency contact information to the executive office in order to facilitate requests from a public safety department for location information in accordance with subsection (b). Such contact information shall be submitted annually by June 15th or immediately upon any change in contact information.

(d) No cause of action shall lie in any court against any wireless telecommunications carrier or in-vehicle security and communications service provider, its officers, employees, agents or other specified persons for providing call location information while acting in good faith and in accordance with the provisions of this section.

(e) The executive office shall maintain a database containing emergency contact information for all wireless telecommunications carriers and in-vehicle security and communications service providers and shall make the information immediately available upon request to all public safety answer points in the state. The executive office shall promulgate regulations for administration and enforcement of this section; provided further, that such regulations shall be promulgated no later than December 31, 2023.